



Referendum Legislation Amendment Act 1999

No. 22, 1999

An Act to amend the law relating to referendums

Contents

1	Short title	655
2	Commencement	655
3	Schedule(s)	655
4	Commonwealth expenditure during 1999 in connection with certain referendum proposals	656

Schedule 1—Amendments	657
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<i>Referendum (Machinery Provisions) Act 1984</i>	657
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Referendum Legislation Amendment Act 1999

No. 22, 1999

An Act to amend the law relating to referendums

[Assented to 19 April 1999]

The Parliament of Australia enacts:

1 Short title

This Act may be cited as the *Referendum Legislation Amendment Act 1999*.

2 Commencement

This Act commences on the day on which it receives the Royal Assent.

3 Schedule(s)

Each Act that is specified in a Schedule to this Act is amended or repealed as set out in the applicable items in the Schedule

concerned, and any other item in a Schedule to this Act has effect according to its terms.

4 Commonwealth expenditure during 1999 in connection with certain referendum proposals

Subsection 11(4) of the *Referendum (Machinery Provisions) Act 1984* does not prevent expenditure by the Commonwealth in respect of things done during 1999 (whether or not by the Commonwealth) in connection with either of the following proposed laws (including expenditure before the relevant Bills are introduced into the Parliament):

- (a) a proposed law to alter the Constitution to establish the Commonwealth of Australia as a republic;
- (b) a proposed law to insert a preamble in the Constitution.

Schedule 1—Amendments

Referendum (Machinery Provisions) Act 1984

1 Paragraphs 11(4)(a) and (aa)

Repeal the paragraphs, substitute:

- (a) the preparation, printing and posting, in accordance with this section, of the pamphlets referred to in this section;
- (aa) the preparation, by or on behalf of the Electoral Commission, of translations into other languages of material contained in those pamphlets;
- (ab) the preparation, by or on behalf of the Electoral Commission, of presentations of material contained in those pamphlets in forms suitable for the visually impaired;
- (ac) the distribution or publication, by or on behalf of the Electoral Commission, of those pamphlets, translations or presentations (including publication on the Internet);

2 Subsection 25(2)

Omit “Where”, substitute “Subject to subsection (3A), where”.

3 After subsection 25(3)

Insert:

(3A) If:

- (a) the Minister gives a written notice to the Electoral Commissioner that identifies 2 or more proposed laws; and
- (b) referendums are to be held on the same day (the *referendum day*) in relation to 2 or more of the proposed laws identified in the notice; and
- (c) the notice under paragraph (a) is given to the Electoral Commissioner at least 28 days before the issue of the writs for those referendums;

then:

- (d) the ballot papers for each referendum held on the referendum day must be printed on separate pieces of paper; and

- (e) for each of those referendums, the ballot papers must be of a different colour, chosen by the Electoral Commissioner.

4 Paragraph 36A(3)(b)

Omit “the names of the candidates”, substitute “his or her vote”.

*[Minister’s second reading speech made in—
House of Representatives on 11 March 1999
Senate on 25 March 1999]*

(33/99)